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Government of India
Ministry of Law and Justice
Legislative Department

DRAFTING GUIDE FOR SIMPLIFICATION OF LAWS

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DISCLAIMER

The draftspersons are encouraged to adhere to this Guide, but it is important to note that accuracy and effectiveness remain the core requirements for drafting, necessitating them to adapt the guidance according to their unique needs of the policy. Occasionally, deviations from the guidance may occur.[1]

The guiding principle of simple drafting is that no rule is universally binding. While familiarising oneself with all techniques is recommended, the choice of technique for each case should be a discerning one. Overly rigid adherence to these techniques could potentially hinder the clarity of the drafts.[2]

DRAFTING GUIDE FOR SIMPLIFICATIONOF LAWS

BACKGROUND

The Cabinet Secretary had chaired a meeting of Committee of Secretaries (CoS) on the subject of "Comprehensive Review of Pre-Constitution Acts and Simplification of Laws" on 09thFebruary, 2023.While noting the challenges involved in the exercise of simplification of laws, it was,*inter alia*, recommended that a guidance document may be prepared for the simplification of laws, on the basis of global best practices. This task was assigned to the Legislative Department, Ministry of Law & Justice. The draft guidance document is being submitted to the Cabinet Secretariat for its further consideration.

2. Pursuant to the recommendation of the meeting of the Committee of Secretaries, a Committee for Simplification of Laws for the purpose of preparing such guidance document was constituted *vide* OM dated 27th February, 2023 and was reconstituted on 27th September, 2023, comprising of the following members, namely:—

- Shri Udaya Kumar, Additional Secretary — Chairperson;
- Smt. Sudha Rani Relangi, Joint Secretary and Legislative Counsel — Member;
- Smt. Veena Kothavale, Joint Secretary and Legislative Counsel — Member;
- Shri Diwakar Singh, Joint Secretary and Legislative Counsel — Member;
- Shri Radha Krishna Cheekati, Joint Secretary and Legislative Counsel — Member.

3. The Committee, after due deliberations, has prepared the initial draft of "Drafting Guide for Simplification of Laws" ("The Guide") which was circulated for use in the drafting and simplification of laws.

4.Subsequently, a Working Group for the purpose of finalisation of the initial draft of "The Guide" and submission to Cabinet Secretariat, Government of India, was constituted by the Secretary, Legislative Department, which comprising of the following members, namely:—

- Dr.Manoj Kumar, Additional Secretary;
- Shri Diwakar Singh, Additional Secretary;
- Shri R.Sreenivas, Joint Secretary and Legislative Counsel;

5.The Working Group called for the comments and inputs from National Law School of India University (NLSIU), Bengaluru. The NLSIU Faculty comprising of a team of academicians led by its Vice-Chancellor conducted a review of the draft titled "Drafting Guide for Simplification of Laws" as finalised by the Working Group. The inputs have since been received from the NLSIU Faculty and the same have been incorporated in this final version of the "The Guide".

6. It will be circulated amongst the stakeholders for guidance etc., in due course.

INTRODUCTION

Simplification of laws includes taking measures for repeal of obsolete and redundant laws, consolidation or codification of laws on the same subject and use of plain language while drafting for better understanding of laws by the citizens.

2. This Guide is prepared for use by Legislative Counsels (Legislative Draftspersons during the drafting of laws as well as for the respective officers of the Ministries/Departments of the Government of India who are tasked with the drafting of laws/sub-ordinate laws. The guide aims to aid them in their task of legislative drafting, so as to enhance the clarity, precision and effectiveness of legislations *(both principal and subordinate)*, by making the law easy to understand for readers and accessible to public.

3. This Guide functions as a practical aid for Legislative Counsels at every stage of the drafting process. While practical experience is crucial for enhancing drafting skills, this Guide presents an overview of common drafting approaches and proposes solutions for challenges that are frequently encountered. Additionally, the Guide is a vital resource for designing and delivering training programmes in the area of legislative drafting.

4. The journey from policy to law is not a standardised linear process. Different situations warrant distinct approaches. The guiding principles of simple drafting is that no rule is universally binding. While familiarising oneself with all techniques is recommended, the choice of technique for each case should be made carefully. Overly rigid adherence to these techniques could potentially hinder the clarity of the drafts.[3]The same underlying principles apply to the drafting of primary (principal legislations) as well as secondary (subordinate legislations), unless indicated otherwise.

5. This Guide draws inspiration from various plain language drafting guides, legislative drafting manuals and related academic literature. The Guide is further enriched by the domestic experiences of this Department, ensuring an approach that is tailored for Indian requirements.

IMPORTANCE OF PLAIN LANGUAGE DRAFTING AND SIMPLIFICATION OF LAWS

Legislation aims to convey legal directives to either the general public or specific audiences. Consequently, the language employed in legislation must be both technically accurate and easy to understand for the target audience.

2. Complex and ambiguous legislation leads to increased administrative and legal expenses, disregard for the law, and invites unwarranted criticism. While intricate policies, time-constraints, change in policy and other factors can make drafting simple laws challenging, there is usually room for reducing their complexity and avoiding unnecessary complications that may arisefrom undesirable drafting practices.

3. A well drafted legislation helps in better understanding of laws and aids in effective implementation of such laws. Legislation should be formulated in a clear and coherent manner, adhering to consistent principles of presentation and legislative drafting. This approach enables citizens and businesses to recognise their rights and responsibilities, while also enabling the courts to enforce these provisions effectively.[4]

4. Legislative drafts in plain English help to promote transparency, fairness and accessibility in the legal system, which are essential for ensuring that law serves the needs of the citizens and the stakeholders.

PRINCIPLES OF LEGISLATIVE DRAFTING

Legislative drafting principles hold considerable importance, particularly in the context of legislation that must align with a complex, multicultural and multilingual system. The application of these principles aims to achieve three main objectives:

- *firstly, to enhance the comprehensibility of Laws;*
- *secondly, to prevent disputes arising from poorly constructed drafts;*[5] *and*
- *thirdly, to make the readability of Laws easier for the target audience.*

2. Legislative provisions need to be formulated in a manner that leaves no doubt regarding the rightsand obligations they create for the stakeholders. [6]

3. Legislative Drafting involves translating legislative policy into clear, concise, and easily understood law. Such laws, characterised by their clarity, facilitate the work the Executive, making it more effective and efficient and avoiding issues of interpretation.[7]

4. The technical skill of the draftsperson comes into play as meticulous care is required in the use of language, elegance of style, coherence, consistency and brevity combined with clarity as well as completeness. There should also be conformity with the accepted principles of legislative drafting.[8] Similarly, all confusion, unsteadiness, redundancy, lengthy, entanglement, disorderliness and repetitions and amplifications left over in the first attempt, are to be avoided.[9]Both vagueness and ambiguity should be minimised.[10]The final draft must clearly express the intention of the legislature in apt, sufficient and unambiguous terms so that the same is capable of being plainly understood, not only by those who have to administer and enforce the law but also by those who have to obey it. The whole piece must necessarily exhibit a complete, concrete and cohesive plan which effectively meets the desired goals.[11]

5. Effective legislation is synonymous with quality legislation. To achieve this, legislation must embody the qualities of ***clarity, precision, and unambiguity***,[12] as elaborated below:

5A. CLARITY:

Clarity, means the use of words which convey the intent, are straightforward and in the following paragraphs are in modern language, commonly in use.[13]

- Text is considered clear when it is easily understood. Clarity hinges on selecting words appropriately, arranging them logically, and constructing sentences properly.[14]
- Legislative drafting is highly technical and complex, and this is often reflected in its language. The test of well-written legislation, however, lies in its impact on the society. In other words, accessibility is key. While these two facts often pull draftspersons in opposite directions, it is possible to convey complex ideas in a clear and straightforward manner. For this, we need to be deliberate and intentional in how we choose words, how we arrange these words into sentences and how we organise sentences into paragraphs.
- Clarity necessitates simplicity and precision. Both aspects must be balanced to achieve the intended legal outcome. The use of clear language is a fundamental necessity in legislative drafting. Uncertainty or ambiguity in a provision indicates lack of clarity. If the meaning of a law is not clear enough for all readers to interpret uniformly, or if the same meaning is not provided to it by each of its likely readers, it lacks certainty. Draftspersons must not sacrifice clarity for simplicity, as it could undermine the legislative intent.[15]
- When required, clarity should take precedence over considerations of style. ***For example,***—
  - *the use of synonyms and various expressions to convey the same idea should be avoided*;[16]
  - *grammatically correct drafting that adheres to punctuation rules simplifies understanding in the drafting language and facilitates translation into other languages.*[17]
- The public is directly impacted by the subordinate legislation, which means that clarity is imperative in subordinate legislation as it is for primary legislation.[18]
- However, clarity alone is not sufficient. Draftspersons need to understand their legislative goals. The structure of the legislation provides a framework for effective laws and for this purpose, precedents should ordinarily be followed.[19]

5B. PRECISION:

Precision is traditionally viewed as the main aim of common law drafters who make the greatest effort to "say all, to define all; to leave nothing to imagination; never to presume upon the reader's intelligence".[20] The primary objective is to draft laws that align with policy intent and nothing more. Precision is vital and "general principles" statements should be avoided.[21]Balancing simplicity and

precision is a challenge. Striking this balance requires that provisions are precise as possible, while at the same time capable of being understood by the target audience.[22]

- Imprecision often arises from the concept itself being unclear in the draftsperson's mind. Draftspersons must refine and analyse the policy, until it is clear enough for natural expression.[23]One should avoid over-drafting due to the dangers of redundancy and verbosity, but under-drafting can be equally risky as it can result in indefinite or vague language that is devoid of any directive or standard.[24]Draftspersons must critically assess the entire text to maximise readability. While complexity might be necessary in technical provisions, it should be minimised whenever possible.[25]
- **Balance Precision and Simplicity.—**Striking a balance between precision and simplicity is vital. The draftsperson should know his readers and tailor the text accordingly. For example, the tax laws demand precise drafting, while provisions outlining advisory body functions can be less stringent. The challenge lies in deciding the emphasis on precision versus simplicity.[26]
- **Fuzzy Law.—**The style of "Fuzzy Law" or drafting general principles is a way of making laws where you state the main ideas broadly and let the details be determined by courts, delegated legislation or through other means. For example, such a style is found while applying the rules of *ejusdem generis* and *noscitur a sociis*. Its primary advantage is readability and easy comprehension of the main point of law or the general intent. However, its significant drawback is the lack of precise meaning. Draftspersons from common law jurisdictions have historically avoided this style, assuming that users of the legislation dislike it. Nevertheless, if used correctly, this style can simplify the law effectively.[27]
- Provisions of a technical nature demand higher precision and may seem more intricate. These provisions target readers with a deeper technical understanding of the subject. Conversely, simple language is applied to general provisions, consciously allowing for vagueness. Such provisions are aimed at a broader audience, allowing draftspersons to employ clearer language in similar cases.
- **When to employ the "Fuzzy Law" style?—**"Fuzzy Law" is most suitable when you need to encompass a broad array of alternatives in meticulous detail, or when all potential alternatives cannot be fully covered. If a simple general statement can encompass most alternatives, your law becomes much simpler. However, policymakers must decide whether

to adopt the straightforward form or the detailed one, considering the policy and practical ramifications of a law that might not address all alternatives.[28]

- The role of a draftsperson is to encapsulate policy within a legal framework, necessitating clear and precise language for effective communication of the Legislature's intent. The challenge for draftspersons is that they must rely solely on words. Atmosphere, colourful language, and repetition cannot be used in legislation. Written words alone represent clarity of thought or carelessness. Written communication demands more care than oral communication.[29]
- Draftspersons should anticipate the various perspectives from which the readers will approach the legislation. ***For instance***, the draftsperson should ensure that even readers who are not inclined to view the legislation favourably reach the same understanding that is intended by the draftsperson.[30]
- When a word can hold multiple meanings, the draftsperson must ensure that it carries an easily identifiable interpretation for a range of readers. Another challenge is to find words that are not inherently vague. Some words are clearly defined, like numbers or days of the week. Others become vague based on usage. Some words are intentionally imprecise, allowing subjective interpretation by third parties, including judges. ***Examples include*** "satisfactory", "necessary", "fair", "reasonable", and "viable". It is important to note that words can adopt the qualities of the individuals or context in which they are used.[31]

5C. UNAMBIGUITY:

Ambiguity arises in language when there are multiple interpretations that conflict with each other.[32] The presence of an ambiguous word introduces a state of uncertainty where alternative meanings compete with each other, even within the given context.[33] The central characteristic of ambiguity is its inherent uncertainty, creating a situation akin to an "either—or" challenge.[34] An ambiguous word carries the risk, in its specific usage, of conflicting meanings that are rarely desirable or justifiable. Due to its potential to mislead or confuse, a draftsperson should refrain from employing an ambiguous word in a context that does not clarify the ambiguity. The draftsperson should avoid using an ambiguous word (for instance, "year") when an unambiguous word can adequately convey the intended meaning (such as "financial year" or "calendar year").[35]The draftsperson holds significant responsibility to assess whether within the given context, there exists a noteworthy uncertainty of interpretation. If such uncertainty is likely, the draftsperson should

rectify it by choosing a different word or by adjusting the context or adding an explanation as a precaution.[36]

PLAIN LANGUAGE

WHAT IS PLAIN LANGUAGE?

The term "plain English" has been accepted by movements in USA, UK, Canada and Australia among other jurisdictions. In Canada, due to bilingual laws, it is termed "plain language". Although approaches vary, the goal is consistent: to simplify official writing by eliminating unnecessary complexity.[37] We will also refer to this as the "Plain Language Guide" in India, given the reality of multilingual laws. Plain language serves as a tool to achieve clarity, precision and reduced ambiguity in legislative texts, thereby enhancing their effectiveness and overall quality. Writing in plain language does not imply oversimplification or omission of critical details. In fact, using plain language makes vital information accessible and readable for all. In transforming policy into well-constructed law, the technical aspect can often be more challenging than the ethical considerations. The drafting task is to distil clarity from complexity, as **Justice Oliver Wendell Holmes** cautioned that ideas may not be tough, but words can be tricky.[38]

2. DEFINING PLAIN LANGUAGE:

Plain Language in drafting legal documents is the style that effectively conveys to the reader as to who is required to perform (or to refrain from) certain actions, when to create legal rights, privileges and obligations. The concepts of "who", "what", and "when" may incorporate "where" to specify jurisdiction and "how" to provide the necessary mechanism for desired outcomes. The "why" of legislation need not be explained in the text, as the rationale can be irrelevant.[39]

3. TARGETED LEGISLATIVE DRAFTING:

When drafting legislation, consider the target audience, enabling them to identify their rights and obligations clearly. Different categories of addressees exist, from the general public to specialists, each expecting understandable language. Certain legislations might involve intervention by various authorities,[40] necessitating specialised language.

4. THE PURPOSE OF PLAIN LANGUAGE:

Drafting legislation in plain language aims to enhance democracy and the rule of law by making legislation accessible to those affected. However, identifying the primary audience for a legislation is complex. Writing for target/stakeholders is often recommended, and the assumption that lay persons read legislation may not be grounded in reality.[41]

5. MOST OFTEN, CLARITY AND PRECISION ARE NOT IN CONFLICT, BUT RATHER COMPLEMENTARY AIMS:

The assertion that one must choose between accuracy and clarity is a misconception .[42] By pursuing both of these goals at the same time, draftspersons can enhance the quality of their work. Successful legislation stems from drafting that is crystal clear, intelligible and precise. Clarity necessitates simplicity and precision, while excessive precision often breeds complexity and obscurity.[43]

One also needs to be cautious while applying plain language in legislative drafting. Language is not invariably straightforward; a single word might have multiple meanings. For example, 'attend' cannot always replace "turn up", and "notify" might not always mean "tell". Diligent adoption of plain language could create ambiguity, confusion and avoid undermine the credibility of the text.[44]

6. GUIDING PRINCIPLES OF PLAIN LANGUAGE:

A. PREFERRING POSITIVITY OVER NEGATIVITY:

- The positive is often easier to understand than the negative. **For example**, "*Speak after the tone*" is easier to understand than— "*Do not speak until you hear the tone*". This rule is not universally applicable. In certain cases, prohibition might be better conveyed in the negative. **For example**, "*Do not walk on the grass*" is clearer than "*Walk on the path*".
- Express quantities positively rather than negatively. **For example,** 25% or more rather than not less than 25%;[45]
- Use the positive rather than the negative. **For Example**, **say** "*a form shall be valid only if the taxpayer has signed it*" instead if saying "*a form shall not be valid unless the taxpayer has signed it*".
- Avoid double and triple negatives. But remember that sometimes a double negative doesn't equal a positive. **For example**, "*the Authority has not certified that the person has not made an application*" is not the same as "*the Authority has certified that the person has made an application*".[46]

In the traditional style, negativity can lead to redundant expression. In the subsequent illustration, sub-section (*2*) needs to negate sub-section (*1*):

For example:

"(*1*) *An institution that has complied with section 5 shall do X*." **Avoid saying**: "(*2*) *A tertiary education institution that has complied with section 5 shall not be required to do X if* ..."

or

Avoid: "(*2*) *Sub-section (1) does not apply to a tertiary education institution that has complied with section 5 if* ..."

Instead, use: "(*2*) *Sub-section (1) does not apply if* ...". Since sub-section (*1*) details the entire scenario, reiteration is not necessary when conveying the negative.[47]

B. FAVOURING THE ACTIVE VOICE OVER THE PASSIVE VOICE:

In general, the active voice is more readily understood than the passive voice. The passive might be suitable if the agent is unimportant, universal or unknown.

For example: "If a notice is given to the Authority…" might be suitable if the same rule applies regardless of the giver of the notice. Regardless of the actor/agent, the focus remains on the receiving "Authority".

Similarly, in the provision "No woman shall be subjected to sexual harassment at any workplace", the usage of passive is more appropriate.

Prefer the active voice to the passive voice. For example, say "*the Authority shall serve a notice*" rather than "*a notice shall be served by the Authority"*.[48]

C. UTILISING THE PRESENT TENSE:

The fundamental principle is that a statute always speaks in the present. However, there might be situations where using the present tense could lead to confusion or misinterpretation.[49] When a statute refers to events or actions that happened in the past or should happen in the future, using the present tense might not accurately reflect the timeline. **For example**, "*All contracts entered into before January* 1, 2024*, shall be governed by the previous laws*".

D. TENSE:

Therefore**,** use of present tense should be preferred unless a provision pertains exclusively to the past, future, or a sequence of events requiring an alternative tense. Legislative provisions are applicable as of any date they are read (not necessarily when drafted, enacted, or enforced).[50]

The present tense describes states of affairs or legal consequences; **For example**, "commits" **is correct, not** "shall commit"; "is disqualified", **not** "shall be disqualified"; "is void", **not** "shall be void".[51]

E. CONSTRUCTING SENTENCES:

- When there is no ambiguity, position adverbial phrases after the verb.

For Example: Say *"the Authority may issue the license within 30 days after receiving the application*", instead of "*the Authority may, within 30 days after receiving the application, issue the license"*.[52]

- Keep closely related words together. For instance, maintain proximity between the subject and the verb, and between auxiliary verbs (is, are, must, has, etc.) and main verbs. Ensure that modifiers stay close to the words they modify.[53] **For example**,—

1. "*The research study conducted by the professor over the course of five years was published*" In this sentence, **the subject** is "*research study*" and the **main verb** "*was published*" should be kept close together. "*The research study was published by the professor over the course of five years*"
2. "*She has completed her assignment ahead of the deadline*". In this sentence, the **auxiliary verb** "*has*" is used to indicate the completion of the action, the **main verb** "*completed*" is the action that was performed.

- Avoid intricate or unusual grammatical structures. For instance, avoid placing long phrases in parentheses within the middle of sentences.[54]
- Refrain from using noun strings (sequences of nouns serving as adjectives). Instead of saying "*child care delivery program grants"*, say "*grants for programs for providing child care"*.[55]

- Substitute noun strings (a series of two or more nouns used to name something) with direct statements.

  For Example: Instead of "The *training program evaluation team will submit its final report in September"*, write "*The evaluation team will submit its final report on the training program in September"*.[56]

- Minimize the use of demonstrative adjectives when not necessary. Say "*the company*" or "*the notice*" rather than "*that company*" or "*that notice*" (though "*that time*" is usually less ambiguous than "*the time*").[57]
- When employing "*other than"*, ensure clarity about which words are qualified by the phrase.

  For example: Say "*a person (other than a policeman) who is under 60*" instead of "*a person other than a policeman who is under 60"*.[58]
- Avoid using "*being*" and "*not being*" to link relative clauses. For example, instead of saying "a *person who is 70 or over, being a person who has a driving license"*, say "*a person who is 70 or over and has a driving license"*.[59]
- Avoid employing the "*such ... as*" structure unless it is necessary. For instance, opt for "*take appropriate steps*", instead of "*take such steps as are appropriate"*. Similarly, choose "*conditions determined by the Authority*" over "*such conditions as are determined by the Authority"*.[60]

F. SENTENCE LENGTH:

Ilbert, in his analysis of Bentham's work on Nomography,[61] points out that Bentham recommended minimising sentence length as one of his rules, among several other guidelines shared by advocates of plain English and plain language.

Conventional legal English often employs excessively long sentences in legislation, which can prove challenging to understand due to short-term memory limitations.[62] This tendency arises from the practice of expressing each provision within a single sentence. Lawyers adopted this approach believing that semantic connections are clearer within sentences than across multiple ones. Plain English proponents argue that retaining the single provision/single sentence structure lacks justification.[63] They highlight that shorter sentences tend to be syntactically simpler and more comprehensible.[64]

It is not just the length of a sentence that makes it harder to understand. Instead, it is the complex way the sentence is structured when we try to fit all the necessary information into one sentence. This can lead to using tricky grammar, like combining what should have been several sentences together or using too many extra phrases. Studies in this field like psychologyand teaching have actually shown that using these complex sentence structures makes it harder to understand them. So, it is better to avoid using them too often. When possible, it is a good idea to break down the content into a few shorter and well-structured sentences instead of sticking to one long sentence.

G. BREVITY AIDS CLARITY:

Short sentences contribute to clarity. A lengthy sentence can burden readers with retaining too much information. Hence, striving to limit each sentence to conveying a single idea generally yields the best results. However, occasionally, a complex proposition is better communicated in a single sentence rather than splitting it into multiple shorter sentences across successive sub-sections, which may require re-assembly for understanding.[65]

Provisions of the legislations should be concise while featuring homogeneous content.[66] Excessively long articles, sentences, complicated wording and excessive abbreviations should be avoided.[67] The hallmark of effective legislative style lies inbriefly expressing the text's key ideas.

H. MAINTAINA BALANCE:

Avoid excessive brevity if adding words would enhance clarity of the phrase or sentence. Each sentence should convey a single idea, while articles must group logically linked ideas within each clause or sub-clause. Texts should be organized into easily digestible segments aligned with the progression of the reasoning. An excessively dense block of text strains both the reader's eyes and their comprehension. This should not, however, lead to unnaturally and excessively fragmented sentences.

Typically, a sentence follows a beginning, middle and end structure. The reader grasps its structure only upon reaching the end. Consequently, a lengthy sentence compels readers to hold multiple ideas in suspension. The relationships between these ideas remain unclear until the sentence structure is revealed. Additionally, the more suspended ideas within a sentence, the harder it is to perceive its structure. Moreover, a long sentence presents numerous ideas simultaneously.

Research reveals that readers can only retain a few ideas in memory before needing to pause and synthesise them.[68]

I. METHODS TO MAINTAIN SENTENCE BREVITY:

- Ruthlessly remove unnecessary words.
- Exclude lengthy qualifying clauses (*e.g., exceptions, conditions*) from the main proposition; address them in separate sub-sections or sentences within the same provision.
- Avoid strings of repetitive words; employ a concise, generic word to cover alternatives and define, if needed.
- Avoid obscuring the structure of an operative provision by delving into complex concepts. Utilize short terms in the operative provision and define them separately.[69]

In general style, short words are preferable to long ones. This is especially crucial in legislative drafting, where sentences can often be lengthy and intricate. Long words hinder comprehension, while consistently using shorter words fosters an overall simpler style.[70]

J. AVOID UNNECESSARY REPETITION:

Traditional style often repeats a phrase when introducing an entity with several descriptors.

For Example: Introduce *"tertiary education institution"* and later refer to it as *"the institution"* [71] or introduce *"Securities and Exchange Board of India"* and later refer to it as *"the Board"*. Similarly, *"Insurance Regulatory and Development Authority of India"* and later refer to as *"the Authority"*.

K. PREVENT BLOCKS OF UNBROKEN TEXT.

Extensive unbroken text sections can intimidate readers. Adhere to the "5 line rule": limit unbroken text slabs to five lines, unless that is unavoidable.[72]

Research shows that readers struggle with lengthy sentences that contain extensive information. Typically, a unit of unbroken text should not exceed 50 words.[73] If a sentence is divided into sub-sections, each sub-section should also stay around 50 words. When a section contains a series of sub-sections, each sub-section should not exceed 50 words. A sentence

exceeding five lines should prompt the draftsperson to consider using multiple shorter sentences for enhanced readability.

L. ONE SENTENCE PER CLAUSE OR SUB-CLAUSE:

While the general rule confines sections or sub-sections to a single sentence, exceptions are permissible to avoid overlong sentences. If sentence contents are closely interconnected, dividing the sentence within one section or sub-section might be more suitable than creating separate ones.[74]

M. CONCISE:

Writing is imperative, particularly in legislative drafting. This means minimising unnecessary words, resulting in ***"tight"*** prose. Loosely drafted sentences with excessive words can lead to complexity, tiresome reading, inconsistent use of terminology and increased ambiguity.[75]

For example: Consider this lengthy sentence: *"A licensed dealer must always keep displayed in a place where it can easily be seen in the licensed premises the license authorising him or her to undertake the relevant trade, profession, or business."*

This can likely be condensed to*: "A dealer must display the license prominently in the licensed premises."* [76]

N. STRUCTURES OF SENTENCES:

Coode's first statement of what a law is, gave a clear and logical approach to writing legislation. He said:

> 'The expression of every law essentially consists of,—
>
> - first , the description of the *legal Subject*;
>
> - secondly , the enunciation of the *legal Action*,
>
> To these, when the law is not of universal application, are to be added,
>
> - thirdly, the description of *the Case* to which the legal action is confined; and
>
> - fourthly, *the Conditions* on performance of which the legal action operates[77].'

Coode's "first" rule or statement of what comprised a law, followed the logic of normal English. The objective of the statement was clear.[78]

Coode then proceeds to **define the concepts of "Rights, Privileges, and Powers**," along with the corresponding **"Obligations"** that a law gives rise to. He observes that a single sentence in law can only encapsulate one of these processes. Coode also includes provisions for using negatives to establish prohibitions and offenses.[79]

Another way to encapsulate this Coodean approach to legislative drafting is encapsulated as:*Who (the legal subject) is responsible for What (the legal action) and When (the circumstances and conditions)?*

The negative approach is similarly structured:

Who should not undertake What under What circumstances?[80]

By presenting a concept in this fundamental "***who, what, and when"*** format, we effectively express the core components of what a law ought to convey in the most transparent manner. This naturally assumes that the draftsperson is well-versed in the policy and accurately reflects the required rights, powers, privileges, or obligations within the legislation.[81]

Extending this analysis to "inquisitives" like "**where", "how", and "why"** yields the following responses:

"**Where"** primarily indicates jurisdiction and its use should be limited to specifying jurisdiction. Often "**where"** is used to introduce a condition, particularly when the drafter is confused as to whether to use **"if" or "when"**. The use of **"where"** as a conditional conjunction has been with the law for a long time. Certainly, Coode used it when he wrote about legislation. For better understanding, however, draftspersons should make the hard call and **use "when" for time conditions,** and **"if" for other conditions**.

"How" information is often suitable for principal legislation, but is usually more appropriate for subordinate legislative instruments. "How" often pertains to regulatory aspects rather than legislative ones.[82] "How" material can be used in principal legislation, but is more often material that should be used in subordinate legislative instruments. "How" material is regulatory rather than legislative. The legislature determines the principles on which **rights, privileges, powers, and obligations** occur. The method of applying those principles should be reserved for regulatory instruments.[83]

"Why" is a question for legislators? **Explanatory material** that details policy or rationale should be used sparingly, if at all.[84]Adopting the ***"who, what, and when"*** framework for a section's general structure should also extend to expanding or explaining ***"who", "what", "when", "where", "how", and "why".*** This rationale is simple: draftspersons should draft instructions plainly, mirroring human logical thinking and speech during instruction.[85]

O. USE THE SUBJECT-VERB-OBJECT CONSTRUCTION BY DEFAULT:

For instance, instead of: "To update the address lists **(object)** may be **(verb)** your primary concern **(subject)**.", prefer this "Your primary concern **(subject)** may be (**verb**) to update the address lists **(object)**"[86].

More clarity of vocabulary might trip up a substantial portion of your audience. This especially applies to jargon that could be replaced with conventional language without compromising the idea's clarity.[87]

Opt for ***verbs*** over ***'nounisms'***. A nounism is a verb presented in its nominal form. For instance, ***prefer*** '***introduce'*** instead of 'introduction.' Compare: "***She introduced the speaker***" to "She gave an introduction of the speaker."[88]

The length of a piece of string is a phrase that prompts reflection. Two points come to mind. The first is the use of complex terminology. In legislation, complex terms should be defined for clarity.

Secondly, consider removing conjunctions**, *especially 'and', 'or', and 'but',* and use full stops instead.** The ***'fog level formula'***[89] is a test for gauging readability, though its application has limitations. While readability tests do not guarantee perfect clarity, they help assess passage readability.[90]

Keep sentence structure simple by positioning the subject and verb at the sentence's outset, ***utilising subject + verb + object construction***. This format aids readers in understanding the subject's action, as the subject is presented first, followed by the verb. Refrain from complicated and compound sentences, as they often overwhelm readers scanning through text. Exchange complex sentence structures with straightforward statements. For instance:

> ***Write:*** *You have until April 30 to file your tax return.*

or

The return shall be filed until April 30.

Instead of: The period of time that you have to file your tax return ends on April 30.

P. PARAGRAPH STRUCTURE:

Use paragraphs to distinguish lists of alternative or cumulative content from the main sentence structure.[91] Dividing lengthy provisions into paragraphs (or sub-paragraphs within paragraphs) facilitates immediate comprehension of their grammatical structure. This division allows readers to focus on meaning without simultaneously unravelling the sentence's grammar. Paragraphs are especially useful for long lists of qualifying conditions or exceptions. However, avoid excessive paragraphing. Lengthy and complex paragraph divisions are sometimes employed solely to prevent repetition of common words applicable to each case. In such instances, consider dividing the provision into separate sub-sections and repeating common words to enhance clarity, even if it results in a longer passage. If paragraphs render the passage disjointed, reconsider paragraphing for smoother reading.

Minimize excessive fragmentation within paragraphs. ***For example:***

Say: "A contract is void if it:

(a) ...; or

(b) ...; or

(c) ...; or

(etc.)"

don't say: "If a contract:

(a) ...; or

(b) ...; or

(c) ...; or (etc.)

the contract is void.".[92]

The use of "***and" or "or***" at the end of paragraphs can clarify whether they are cumulative or alternative. However, repeating these conjunctions for multiple short paragraphs can appear awkward. To avoid this, indicate cumulative or alternative intent within introductory words, such as "***each of the following", "any one of the following", or "any or all of the following"***.

In short, coherent drafting requires adhering to a well-structured pattern and employing readability tools judiciously, all in service of crafting clear and effective legislation. Sentences should be simply and logically constructed. The classic structure is ***subject-verb-object***. If possible, avoid inserting words between the subject and the main verb.

For example:

Instead of—The Authority may, if the required conditions are fulfilled, issue a license to the applicant.

you could say—The Authority may issue a license to the applicant if the required conditions are fulfilled.

Use parallel structures to express similar ideas. For example don't mix conditions and exceptions, or ***"if" and "unless***" clauses, in the same sentence.[93]

If … then:

In drafting, you often need to put the conditional clauses first because they spell out all the facts, and the main clause would be meaningless without them. However, if the main clause is very simple and the conditional clauses are long and/or numerous, put the main clause first. This way, the reader knows what it is about before ploughing through the paragraphs.

For example: say: *"A contract is void if it:*

(a) ...; or

(b) ...; or

(c) ...; or

(etc.)"

don't say: "If a contract:

(a) ...; or

(b) ...; or

(c) ...; or (etc.)

the contract is void.”.[94]

Get to the point as quickly as you can. Ideally, the opening sub-section of a clause will contain the main proposition or at least give the reader some idea of what the clause is about. Do not bury the main proposition away in the middle of the clause if you can possibly avoid it. So, if the clause produces a particular legal effect if conditions are met, it may be more helpful to state the effect before listing the conditions.

For example:

A notice must be given if....(several conditions).... is probably easier to understand than— ***If...(several conditions)..... a notice must be given.***[95]

The basic elements of a legislative sentence:

It follows that a legislative sentence must therefore prescribe the limits of the right, privilege, power, obligation or liability and designate the circumstances in which it arises. All grammatical sentences must have a subject (the person or thing to be affected by the sentence) and a predicate (what is said about the subject). Some refinement to this simple proposition is necessary in a legislative sentence and in practice such a sentence must have: a subject (Coode referred to the ‘legal subject’)a predicate (Coode called this the ‘legal action’) and (in most cases, and unless the sentence would be too long as a result) a context.[96]

Q. LEGAL SUBJECT:

This is a convenient termto refer to the **precise person or categories of persons who will be affected by a rule.** Where the rule applies to persons generally, the convention used is to state “a person”; although the kind of person affected may be stated directly, **for example,** “a police officer”, “an inspector”, “a licensee”. The legal subject should normally be placed in a **prominent position** in the sentence:

For example:

A **person** must not enter an infected area.

A police officer may arrest a person trading in a street without a license.

A person (i.e. an individual or group of persons, or a juridical person such as a company, corporation or partnership) should normally be made the grammatical subject,[97] although occasionally it will be useful to make use of an inanimate subject.[98]

For example:

"*A contract entered into in contravention of this Act is void*."

This may be done so long as the actual person or persons affected by the rule are clearly identified (obviously here they are the parties to a relevant contract). In this way, the drafting is made more concise, for to make a person the legal subject would involve restructuring the words into a much longer sentence:

"A person who enters into a contract that is in contravention of this Act may notrely on its provisions, which arevoid."[99]

However, there is always a danger, when making something other than a person the legal subject, that sight will be lost of the actual person or persons to whom the rule is intended to apply:

For example

*"**Cattle** must be confined in an infected area."*

***"Notice of transfer** must be given to the licensing authority within 14 days."*[100]

On whom exactly is the duty to confine, or to give notice, placed? The problem lies in the use of the **passive voice**. While it is not suggested that this never be used (it is sometimes convenient), care needs to be taken to check that it is clear who the person being addressed is.[101] In practice, the legal subject is usually modified to confine the rule to particular persons or things or classes of persons or things.

For example:

A person who is a passenger on a bus…

An advocate qualified under this Part…

A licensee who contravenes sub-section (1)…

A certificate of a motor vehicle examiner…

A contract of hire purchase…

Occasionally, more than one legal subject may be contained in the same sentence: *"A police officer may require the driver of a motor vehicle to stop where indicated, and the driver must then stop accordingly and switch off the engine of the vehicle."*[102]

Legal action is Coode's technical expression (for what is sometimes called the ***predicate of*** a sentence). Coode used it to indicate the way in which the legal subject is to be ***affected***. This is done by use of a verb auxiliary ("***must" or "may" as*** shown in the examples below). Usually, the legal action takes one of two forms:

(a) the precise terms of the act or omission required or permitted:

A person must not enter an infected area.

A police officer may arrest a person trading in a street without a licence.

OR

(b) the consequences for a person of things done or omitted to be done:

A person who contravenes sub-section (1) commits an offence.

A convicted person is disqualified from standing for election…

A contract of hire purchase entered into in contravention of this Act is void.

- the technical term "***legal action"*** should not be confused with "***activity"***
- where an act or omission is required or permitted, the verb should contain the appropriate auxiliary to indicate the nature of the rule.

More than one legal action may be contained in a sentence.

> "A police officer may require a motor vehicle to stop and, if the officer suspects that the driver has consumed alcohol or drugs, require the driver to submit to a breath test. A person who contravenes sub-section (*1*) commits an offence and is liable to a fine of ……Rs."

Use paragraphs to separate lists of alternative or cumulative matter from the main structure of the sentence. [103]

Dividing a long provision into paragraphs (or sub-paragraphs, in the case of a paragraph) is a useful way to make the grammatical structure of the provision easy to see at first glance. The reader

can concentrate on its meaning without having to decipher its grammatical structure at the same time. Paragraphing is a particularly useful way of dealing with a long list of conditions, exceptions, etc., qualifying the main proposition. However, do not overdo it. Often a provision is divided into a longer complex series of paragraphs, just to be able to avoid repeating a few common words that apply to each case. If the paragraphing is too elaborate, consider dividing the provision into separate sub-sections and repeating the common words in each sub-section. The result will be longer, but easier to understand. If a provision with paragraphs is long and complicated, consider moving some of the introductory words into each paragraph, to help the reader see how the paragraphs fit into the structure of the provision.

Do not let your paragraphs result in "shredding", that is unnecessarily interrupting the normal flow of the sentence. **For example**, ***do not say:***

> "If a person:
>
> (a) is injured; or
>
> (b) falls ill; and
>
> there is nobody to:
>
> (c) care for; or
>
> (d) feed;
>
> the person, then ... etc."

This is a logical way to express the idea "if ***a or b, and c or d, then e ...".*** However, it is not properly presented in the above example because the paragraphs are so short that they are not really necessary.

On the other hand, a structure with long paragraphs is very hard to understand. Try to avoid it, or at least reduce its length, by putting each group of paragraphs in a separate section or sub-section.

Use "***And" or "or" at ends of paragraphs***, etc. ("Paragraph" here includes sub-paragraph, sub-sub-paragraph, clauses and any other similar unit, but not a definition.)

The traditional way of showing whether paragraphs are cumulative or alternative is to put "***and" or "or"*** at the end of the second last paragraph. However, this means that, with very long

provisions, the reader has to turn one or more pages to find out whether the paragraphs are cumulative or alternative. Also, untrained readers do not always know that the "***and" or "or***" at the end of the second last paragraph applies to all the earlier paragraphs.

If you need to show whether paragraphs are cumulative or alternative, put "and" or "or" at the end of each one (but do not mix "ands" and "ors" in the same string of paragraphs).

If there are a lot of short paragraphs, the "***ands" or "ors"*** can look awkward. You can avoid using them altogether by dealing with the matter in the introductory words. ***For example***, ***say*** "each of the following:", "any one of the following:", or "any or all of the following:".

R. DEFINITIONS:

- Use definitions not only to give precision to a term or phrase but also to shorten your text. If you need to use a phrase of two or more words many times, consider giving it a short "label" and defining it.

- Complicated concepts can be simplified into definitions, with the defined terms subsequently applied in the operative provision. This significantly reduces the length of the operative provision and enhances its structural clarity.

- Some advocates of plain language may object to this approach, especially when it yields what they term "artificial concepts." Nonetheless, the gains in simplifying the operative provision outweigh the potential drawbacks of employing definitions.

- If possible, choose distinctive "labels" that give a clue to the meaning of defined terms. The traditional style often uses colourless terms like "the prescribed amount" or "the relevant person". These make a provision harder to understand, especially if there are two or more terms of this kind in a complicated provision. It is usually possible to find a key word that helps the reader keep the meaning of the term in mind. Try to keep the defined terms short. The "label" can be short because the details are set out in the definition.
- Exercise restraint in using definitions. Avoid defining a phrase if it is brief and infrequently used. Refrain from defining a subsidiary concept. If you have a big definition that includes a smaller idea inside it, you do not have to explain or define the smaller idea separately unless it would make the big definition really hard to understand.[104]

S. JARGON, CONVENTIONAL TERMS, AND USE OF COMMON LANGUAGE:

The term "jargon" is often attributed by non-lawyers to the language of traditional legal English. They perceive its grammatical intricacies and vocabulary as a type of "jargon" that not only carries an elitist connotation, but also serves as an impediment to their entry into the legal realm.[105] This vocabulary encompasses terms of art (e.g., "natural justice"), technical terms (e.g., "manslaughter", "trust"), stylistic nuances (e.g., "covenant" rather than "promise") and reference phrases (e.g., "aforesaid").[106]It is prudent to avoid jargon, specific buzzwords and particular Latin phrases when they are used outside their generally accepted legal context.[107]

Whenever feasible, avoid jargon, idiomatic expressions and specialised terms. Opt for the most lucid and widely understood terminology for your targeted audience. The use of legal and technical terms, as well as bureaucratic language, typically confuses most individuals. Online translation tools used by those who are not proficient in Hindi, English or regional languages may not consistently render idioms and expressions accurately. If you find it necessary to include jargon familiar to your target readership, ensure you explain it using uncomplicated and familiar language or provide an illustrative example to aid non-specialists in understanding the concept, and never use jargon to clarify another jargon. For example:

- Instead of: *You have to file your IT return by April 30.*

- Write: *You have to file your income tax return (IT) by April 30*.[108]

It is imperative to emphasize that the draftsperson should adhere to commonly employed language except when there is a valid rationale for divergence. Just as language is personal, so is the cultivation of style. It is not uncommon for draftspersons to unknowingly develop an undesirable habit of repetitively employing a favoured word or expression. Words such as ***"such", "relevant", "hereby", "deem",*** and phrases like ***"as the case may b"***" often fall into this category.[109]

It is important to identify keywords employed by your audience to access your content. Employ tools like:

- Google Trends
- Google Keyword Planner
- Bing Keyword Research
- Mozilla Firefox's

Furthermore, refer to your analytics to ascertain the search terms used by your audience to locate related content.[110]

If the law is utilised by a broad range of people, provide brief and accurate definitions for technical terms to aid those who might not be acquainted with them. However, if the readership primarily consists of specialists, such as an Act pertaining to admiralty jurisdiction, there is no need to define terms of art like "*action in rem*" and "*action in personam*". Similarly, in general laws, sections concerning evidence may not require defining terms like "*prima facie*" as they predominantly concern legal practitioners.[111]

Avoid	**Use**
absolutely null and void and of no effect	Void
accorded	Given
adequate number of	enough
adjudged, ordered, and decreed	adjudged
admit of	allow
among and between	among (if more than two involved); between (if two or more but treated individually)
approximately	about
at the place where	where
by means of	by
cause it to be done	Have it done
constitute and appoint	appoint
do and perform	do
does not operate to	Does not
during such time as	while
during the course of	During

Words and Phrases to be avoided by draftspersons:

- Above/Below: These terms are considered imprecise due to potential pagination variations that might render them oddly situated.
- Aforesaid, above-mentioned, aforementioned, before-mentioned: These reference words are both imprecise and inefficient.
- Foregoing, preceding, succeeding
- Hereby, thereby
- Herein, hereinafter, hereinbefore, hereto, herewith, hitherto, heretofore.
- "it shall be the duty of": A simpler, shorter, and more direct alternative is to use the word "must" or "shall".

- "it shall be law for": Use "may" instead.
- Whatsoever; wheresoever; whosoever; whomsoever: Employ whatever, whoever, whenever.[112]
- Unnecessary adjectives and adverbs;
- Latin expressions when an English phrase would suffice.

T. CONJUNCTIONS: AND, OR, AND AND/OR:

While "and" and "or" are seemingly contradictory, "and" functions as a conjunctive element, whereas "or" serves as a disjunctive one. The former indicates unity, while the latter offers a choice. Draftspersons are strongly encouraged to uphold this fundamental differentiation.[113] There have been instances where courts have interpreted "and" in a disjunctive manner and "or" conjunctively. The context has at times guided courts in rectifying errors.

The traditional style avoids the use of "and/or" due to potential ambiguity or uncertainty. However, it can have its utility. Avoid its use at the end of paragraphs, sub-paragraphs or clauses so as to ensure clarity. **For example***, say "horses and/or sheep", not "horses and/or sheep or goats"*.[114] Using either of these words demands precision.[115] "or" is disjunctive, "and" is conjunctive. Furthermore, the word "and" signifies unity, while "or" implies a choice.[116]

The fundamental guideline is that "and" should be employed when referring to one entity, like a "husband and father". If referring to two separate individuals but using "and", the expression would be "a father, and a husband". Even in this case, "and" is still conjunctive, indicating both a father and a husband must act. The clarity increases when another word replaces "husband", as in "A father and a teacher shall sign the student's declaration form".[117]

Replacing "and" with "or" yields "A father or a husband" shall file a statement, commanding either a father or a husband, independently. The use of both words requires meticulous precision.

A problematic situation arises when both "and" and "or" are employed in the same legislative sentence. "A father and husband or wife shall...".

The ambiguity lies in whether:

1. It refers to a father and husband as a single entity, or to a wife.

2. It addresses a father who is not a husband or a wife.

3. It involves a husband who is not a father or a wife.

4. It pertains to a father who is not a husband, a husband who is not a father, or a wife.

The symbol and/or should never be used in a legislative sentence. It is not precise. It is likely to lead to confusion, if not ambiguity.[118]An A.L.R. Annotation commented, in 1939, that "*this phrase, term, symbol, or character is a deliberate amphibology; it is purposefully ambiguous. Its sole usefulness lies in its self-evident equivocality"*.[119]

The most readily available statement of these uncertainties, and of their subtleties and difficulties, is to be found in Professor Reed Dickerson's landmark book, "The Fundamentals of Legal Drafting."[120] With reference to "or" **for example**, the question is whether it is to be (or has been) **used in its "inclusive" sense (A or B, or both) or in its "exclusive" sense (A or B, but not both).**[121] Professor Dickerson notes that observation of legal usage indicates that the tendency is to use "or" in the inclusive sense (A or B, or both). If the phrase "*a charitable or educational institution*" is interpreted in the inclusive sense (A or B, or both), the "or both" means that it can refer to an institution **which is both charitable and educational; and the word "or" appears to mean "and".**[122]

With reference to "and", the question is whether it is to be (or has been) used in its "several" sense (A and B, jointly or severally) or in its "joint" sense (A and B, jointly but not severally). Here, observed legal usage indicates that "and" is used in the "several rather than the joint sense". Thus, if the phrase "*charitable and educational institutions*" is interpreted in the several sense (A and B, jointly or severally), it could cover an institution which is either charitable or educational; and "and" would appear to mean "or".

A, AN, THE:

In legislative drafting, the indefinite article "a" is employed to represent the singular. It is often used in statements of universal description, as in "a person". Preceding a vowel, "an" is utilised.

1. A person shall not stand on a bench in a public park.

2. An employer shall ascertain from an employee whether the employee is a graduate.

The definite article "the" is used to denote specificity. Placed before a noun, it signifies prior identification or reference:

1. There is hereby established a scheme to be known as the Compulsory Service Scheme.

2. The Scheme applies to a citizen who completes a course of study at a tertiary institution.

3. The Principal of an educational institute.

In the first sentence, "a" is employed for indefinite reference. In the second sentence, "The" is used to highlight a unique reference, given the identification of a particular scheme. The same rationale applies to "The" in the third sentence. **Using "A principal" would imply the existence of multiple principals at an educational institute.**[123]

ANY:

The term "any" essentially signifies "one" or "some". It does not hold the same meaning as "a" or "an". Its usage in legislative drafting should consider its ordinary meaning. Thus, the phrase "any person" in a legislative sentence should refer to a universal description. Driedger[124] has noted that "any' can often be replaced by "a" or "an" with better effect in legislation.[125]

EACH:

The term "each" refers to numbers of two or more, implying a prior identification.

1. A company shall have five directors.

2. Each director shall file the particulars specified in the Second Schedule.

Using "a" instead of "each" in this context would be unsuitable due to ambiguity. If one director files the particulars, it could raise questions about compliance with the law. The contents of the Second Schedule may not explicitly indicate that all directors are required to file the particulars. "Each director" ensures precision similar to "a".[126]

EVERY:

The term "every" implies an implied class. For instance, *"every teacher*" points to an identified class of teachers. This reference pertains to each individual teacher within the identified class. Thus, the reference involves numbers. If the intent is to refer to teachers generally, rather than an identified class, "a teacher" would be the appropriate expression.[127]

Although "every" appears singular, it carries a plural nuance more intricate than singular-plural terms like "crowd" or "group". Consequently, replacing "every" with the simple article "a" can help eliminate equivocation in situations like *"every husband and father shall report annually"*, making it clear that the duty is singular and applies to someone who is both a husband and a father.[128]

SUCH:

The term "such" holds various meanings, as defined by the Concise Oxford Dictionary. These meanings encompass expressions like "*the same kind or degree"*, "of the kind or degree already described or implied in the context", and legal jargon such as "aforesaid" or "of the aforesaid kind".

The following example highlights the unwise use of "such":

> *A person nominated for a public office at a primary election,[129] with or without balloting, and accepting such nomination when required, may decline such nomination if subsequently nominated for another office by such party. Similarly, any person nominated to fill a vacancy caused by such nomination by such party may decline the primary election nomination before September twenty-first, preceding the general election. However, this declaration won't be effective if the party's nomination is declined, or if the nominated person declines the primary election nomination. The Certificate filling the vacancy must be completed as provided by section one hundred and forty of this chapter before October seventh, preceding the general election.*

In this excerpt, "such" appears several times, exemplifying usage that should be avoided. The frequent use of "such" creates uncertainties of modification and inconsistencies in conceptualisation. Rearranging the words can eliminate ambiguity.

WORDS AND EXPRESSIONS TO BE USED WITH CAUTION: "ANY", "ALL", "EACH",AND "EVERY":

Although "any", "all", "each", and "every" are necessary and appropriate in certain contexts, they should not be used unnecessarily. **Instead of employing "any" when "a" or "an" suffices, opt for the latter.**

For example:

Instead of: Any person who contravenes a condition … commits an offense.

***Consider*:** A person who contravenes a condition … commits an offense.

Insteadof: Every licensee must keep a record of transactions …

***Consider*:** A licensee must keep a record of transactions …

***Insteadof*:** All persons within the controlled area must wear protective clothing …

***Consider*:** Any person within the controlled area must wear protective clothing …[130]

U. NON-OBSTANTE CLAUSE OR "NOTWITHSTANDING":

When the traditional style aims to override a provision within the same Act or another Act, phrases like "*notwithstanding anything to the contrary contained in this Act*" is used[131]

V. "SUBJECT TO THIS ACT" AND "SUBJECT TO THIS SECTION":

These expressions are not of much help for readers. Strive to avoid them whenever possible. It is more effective to specify the intended provisions for clarity.

W. USE OF NOUNS INSTEAD OF VERBS:

Avoid transforming verbs into nouns. **For example**, say "*a person may apply*", not "*a person may make application"*. Say "*in determining the question"*, not "*in the determination of the question"*. Use "*giving advice*", not "*the giving of advice"*. Choose "*acquiring"*, not "*the acquisition of"*.[132]

X. CROSS-REFERENCING:

Minimize references to other Acts. References should precisely indicate the Act or provision they refer to. Avoid circular and serial references.[133] Cross-references can be demanding for readers, so limiting their use is helpful. Sometimes, reorganizing the material can reduce the need for cross-references.[134]

Back-references in associated provisions: In a section with several sub-sections, the traditional style binds the later sub-sections to the earlier ones by back-references. This is often unnecessary.

Example:

Don't say	Say
"(1) A person may apply to the Minister under this section for a licence. (2) An application under sub-section (1) must be accompanied by the prescribed fee. (3) On receiving an application made by a person under sub-section (1), the Minister may issue a licence to the person. (4) A licence issued under sub-section (3) must be in the prescribed form. (5) A licence issued under this section authorises the holder to ..."	"(1) A person may apply to the Minister for a licence. (2) The application must be accompanied by the prescribed fee. (3) The Minister may issue a licence to the applicant. (4) The licence must be in the prescribed form. (5) The licence authorises the holder to ..."[135]

If you have to identify a number of concepts and then refer to them repeatedly in later sub-sections, use an introductory sub-section to set the scene.

For example: "(1) *This section applies to an applicant who, under an agreement under section 5, is granted an amount to be spent on erecting a building*."

Later sub-sections can then refer simply to "the agreement", "the amount", "the applicant", etc. Sometimes you can use the same approach to link successive clauses, but this requires more caution because there is a greater risk of misunderstanding.[136]

Cross-references interrupt the flow of sentences and the reader's chain of thought. They force the reader to check the references before proceeding with the text. Use a cross-reference only if its absence would create an ambiguity.

Even if a cross-reference must be used, it is often possible to minimize its disruptive effect by identifying the topic of reference. For example, "an application for a license made under section 8" will be more helpful to the reader than "an application made under section 8".

Cross-references to parts of the same section or words or expressions used in the same section are often unnecessary and should be avoided as far as possible. The words and expressions will be read and interpreted in context.

Example: *"(1)* An application for registration must be made in the specified form".

Instead of:

An application referred to in sub-section (1) must be accompanied by the prescribed fee.

Consider:

The/An application must be accompanied by the prescribed fee. [137]

Y. AVOIDING DUPLICATED NOUNS:

Refrain from needlessly repeating words, often stemming from a desire to replicate a phrase from another section. For instance, if section 5 states "This section applies to a person who...", avoid saying "a person who is a person to whom section 5 applies". Instead, say "a person to whom section 5 applies".[138]

Z. NEED CONSISTENCY IN FONTAND TITLES:

The terminology within an Act must be consistent both internally and with existing Acts, particularly within the same field. Uniform terms should express identical concepts, maintaining their meaning in ordinary, legal, or technical language. Consistency aids comprehension and interpretation.[139]

Ensure internal consistency throughout the Act. Adhere to the Act's scope. Rights and obligations must align with what the Act covers and remain coherent, avoiding contradictions. Acts should also align with other Acts, avoiding overlaps and contradictions.[140]

Maintain consistent style and use the same words or expressions for the same meanings. Different terms can lead to confusion. **For example**, in granting permissions, the draftsperson could inadvertently use various words like "allow", "permit", "license", "consent", "let", "sanction", or "recognise". Such variations can create confusion.[141]

Consistently use, as far as possible the same style throughout, and with the same words or expressions used to mean the same things. It is an important rule of drafting any type of legal document (especially legislative rules) that the same words and expressions are used to mean the same things, as there is a presumption that the use of different ones is intentional and indicates a shift in meaning. The potential for confusion can easily be seen in the commonly required legislative provision for the giving of permission to do certain things in a certain way; it would for example, be easy for the draftsperson to drift into using different words to indicate permission –

"allow", "permit", "license", "consent", "let", "sanction", "recognise" – whether these words be verbs or, with any necessary modifications, nouns.[142]

ZA. ACRONYMS AND ABBREVIATIONS:

Only those acronyms which are commonly used should be used in legislation, since their usage can reduce understanding in some instances. The traditional style emphasises avoidance of abbreviations, and therefore the use of acronyms was emphasised. However, contemporary practice employs acronyms (along with appropriate definitions) to mitigate the need for repetitive use of lengthy expressions. For instance, "CFCs" is employed as an abbreviation for "chlorofluorocarbons". Using acronyms that are commonly used in speech is advantageous.[143]

ZB. ORDINAL NUMBERS (1ST, 2ND, ETC.):

Traditionally, all numbers were expressed in words. While cardinal numbers transitioned to figures, ordinal numbers (1st, 2nd, etc.) remained in words. Express numbers as follows:

- Spell out numbers up to and including "tenth."
- Use figures for numbers above "tenth," such as "11th", "12th", etc.[144]

ZC. PERIOD:

Avoid adding "period" unnecessarily when specifying a period. For example, instead of saying "within the period of twelve months beginning on 1st July 1999", say "within twelve months beginning on 1stJuly 1999". If referring back to the period later in the section, you can still use "that period". The phrase "twelve months" is a period, whether explicitly stated or not.[145]

ZD. POSSESSIVES:

Traditionally, the long form of possessives was used, but contracted forms are shorter. For instance, say "the Minister's", not "of the Minister", Use "the Commissioner's" instead of "of the Commissioner." Opt for "the Corporation's" over "of the Corporation".

In traditional style, "whose" is not used with inanimate objects? Instead, "of which" is used. This can lead to a complicate structure called the "delayed relative". **For example**, instead of "*a body corporate the assets, rights, liabilities and obligations of which …",* say "*a body corporate whose assets, rights, liabilities and obligations …*".[146]

ZE. USE OF "PROVISIONS OF":

The traditional style often employs phrases like "*under the provisions of section 5"*, etc. The term "the provisions of" is generally unnecessary unless used as a convenient "label" to describe a list of different provisions. It can be repeated later when referring back to the same set of provisions. For instance, **instead of saying** "*Subject to the provisions of section 5 ...",* say "*Subject to section 5 ...*".[147]

ZF. AVOID "WHERE", USE "IF" OR "WHEN":

Traditional style uses "where" to introduce a set of facts, but in common usage, it implies a sense of place. To introduce facts, **use** "if". *If an event is certain, use* "when". **For example**, **instead of saying** "*Where a person is granted a license"*, say "*If a person is granted a license"*. If the Act ceases to have effect on a specific date, say "*When this Act ceases to have effect"*.[148]

ZG. USAGE OF "MAY", "SHALL", AND "IS":

The term "shall" means that an action is required; the term "may" means that it is permitted but not required. While this might seem obvious, a common misconception concerns the phrase "may not", which is mandatory and is the preferred language for denying a right, power, or privilege (e.g., "The Secretary may not accept an application after April 1, 2011."). The phrase "Shall not" perhaps sounds stronger and is usually construed to have the same meaning, but it is subject to some (rather arcane) interpretations that are best avoided.[149]

In simple terms:

- **Shall:** This means you must do something; it is a rule or requirement.
- **May:** This means you can do something, but it is optional; you do not have to if you do not want to.
- **May not:** This means you are not allowed to do something; it is a rule that says you cannot do it.

So, when you say *"may not",* it is saying you cannot do it, and it is a strong way to say that. *"Shall not"* means the same thing, but sometimes people can interpret it in different, complicated ways, so it is better to use *"may not"* to be really clear.

ZH. PROPER USE OF PROVISOS:

The use of provisos should be exercised within reasonable bounds. The necessity for a proviso is indeed questionable.[150] From both historical and grammatical standpoints, provisos should be avoided.[151] Often, provisos are employed to exempt a specific case from the application of a general provision without providing further provisions for that case. The phrase "Provided that" functions akin to a conjunction, conveying the meaning of “but” or “except that”.[152]

Another usage that raises greater concerns is when a proviso does not alter the general applicability of the preceding enactment but instead stands in coordination with it. This practice should be avoided and has never been endorsed as sound legal practice. Two coordinating provisions should either be placed in separate sub-sections or, if appropriate, combined into a single sentence using the word “and” or a suitable conjunction.[153] The proviso in the following example does not limit the area of application of the provision but outlines a procedural step that is a prerequisite:

> *“After the issue of a certificate by the Registrar, or the grant of a special license by the Governor; the parties may, if they think fit, contract a marriage before the Registrar. Provided that, before they are permitted to do so, each of the parties shall sign a written declaration in the presence of the Registrar, which he shall witness, in the prescribed form”.*

In many contexts, the essence of a proviso can effectively be introduced using phrases like "but" or “except that”, while in other cases, presenting it as a separate sub-section would be more suitable.[154]

A proviso often creates confusion as it makes it difficult for the reader to understand to which provision the proviso applies. Usage of proviso also leads to referential issues as there exists no numbering after the third instance (“provided”, “provide further” and “provided also”)

ZI. USAGE OF EXAMPLES AND ILLUSTRATIONS:

The inclusion of illustrative clauses, aimed at enhancing clarity for readers, may sometimes lead to challenges in interpretation.[155]

The Purpose of Using Examples: The intention behind employing examples is to facilitate the reader's better comprehension of the law. While the primary goal remains drafting provisions in a clear and straightforward manner, certain situations may require more. Complex concepts or

technical provisions can be better grasped when supplemented by an example that demonstrates how they function in practical scenarios. It is important to note that examples are meant to be illustrative and not exhaustive, covering a limited range of scenarios. Examples can be placed strategically for the reader's convenience.[156]

Effectiveness of Examples: Examples serve as a highly effective means to illustrate the implications of intricate provisions. By keeping the example in mind, readers can return to the text and achieve a deeper understanding of the particulars and their interconnectedness. Examples can assume various formats.

Appropriate Use of Examples: Establishing strict guidelines on when to employ examples and when not to is not feasible; it is a matter of discretion. However, it is essential to remember that examples should not replace clear text. Even when incorporating examples, we should strive to maintain the text's simplicity and clarity as though no examples were present. Examples do not define the rule; they merely offer visual aids. Attempting to define a rule solely through examples could lead to a proliferation of isolated instances.

Consistency of Effect: Examples must align in effect with the text they illustrate. Furthermore, when amending a provision accompanied by an example, ensure that the example remains relevant.

ZJ. GRAPHICS:

Consider using graphics to clarify complex ideas. Graphics can take various forms, like diagrams, flowcharts, or outlines. They are particularly helpful for illustrating complex procedures.

ZK. STRUCTURING THE LEGISLATION:

Even when the wording and sentences within a Bill are lucid, comprehension becomes more challenging if the provisions lack proper arrangement. Arrange your Bill to ensure that the inter relationships between provisions are as evident as possible. When readers can discern a pattern within the provisions, understanding the specifics becomes simpler.

Various methods can enhance the arrangement of a Bill:

- Group together the provisions addressing a common subject matter.
- Assemble inter connected concepts in a manner that renders their relationships easily comprehensible.

- Sequence provisions chronologically in a time sequence.

  For instance, begin with the process of license application, followed by license issuance, conditions of the license, subsequent renewal, and finally, revocation.

- Express similar ideas in provisions with similar structure.
- Put general or important propositions first, then particular or less important propositions, then exceptions, then administrative provisions, then offences, etc.[157]

ZL. ELIMINATING EXCESSIVE PUNCTUATION:

Consider putting the parts of your sentence in the proper order so as to simplify matters and avoid hyphenations and excessive punctuation. Hyphenations and excessive punctuation merely burden the language, rendering it less readable. Commas are not necessary when conjunctions adequately fulfil their intended function. Unnecessary punctuation can often be eliminated from poorly written passages, resulting in improved readability without altering the core message. Moreover, shorter sentences naturally diminish the need for excessive punctuation.[158]

ZM. ESSENTIAL POINTS IN LEGISLATIVE DRAFTING:

Example of poor drafting: *'If products do not satisfy the requirements laid down in Article 5, the Member States shall take all necessary measures to restrict or prohibit the marketing of those products or to ensure they are withdrawn from the market, subject to penalties for the other eventuality decided on by the Member States.'*

Example of improved drafting:

"(1) If products do not satisfy the requirements laid down in Article 5, the Member States shall take all necessary measures to restrict or prohibit the marketing of those products or to ensure they are withdrawn from the market.

(2) Member States shall determine the penalties to be applied in the event of failure to comply with those restrictions or prohibitions or withdrawal from the market."[159]

Furthermore, the use of expressions and phrases, especially legal terms, that are overly specific to the English language escalates the risks associated with translation into Hindi and other regional languages.[160] Certain expressions commonly used in the English language may lack equivalence in other regional languages. In such cases, translations can only be accomplished using

circumlocutions and approximations, leading to semantic differences across language versions. Expressions which are too specific to a certain language should be avoided whenever feasible.

The objective is to make the Central law and its terminology appear to align with a specific style for those who are required to apply or interpret them in each State such as officials, judges and lawyers among other stakeholders. Texts peppered with borrowed words, literal translations or challenging jargon are sources of criticism towards laws in general, causing them to be perceived as foreign.[161]

Draftspersons should recognise that feedback from translators and other departments performing linguistic checks can be highly valuable. Such reviews pinpoint errors and ambiguities in the original text, even after extended periods of drafting and discussion. Often, problems detected can be addressed by modifying the original text rather than the translation.[162]

It is advised to use gender-inclusive language. However, this can sometimes lead to complicated expressions like “he, she or it”, “him, her or it” and “his, her or its”. Try to avoid these by rearranging the sentence so as to do without the pronouns altogether. If you cannot solve the problem any other way, consider just saying “it” and “its” if a reference is made to a legal entity or authority or body, organisation, etc.

Historically,[163] legislation tended to be drafted using words of the masculine gender only. Although it is still legally effective to do so,[164] in terms of gender equality and socially inclusive language, it is generally accepted that gender-neutral drafting is more appropriate. However, the gender can be specified if it is relevant to the context, as in legislation that is directed to one gender.

Gender-neutral language also improves intelligibility. This is because using the masculine gender only can misguide anyone unfamiliar with the concept that “he” in legislation is intended to function as a generic pronoun to include “she” and “it”.

(Not everyone is aware that “he” includes “she” and “it”, as plain language itself by definition is for better understanding by the general public, the general public may not be aware of the General Clauses Act, 1897 and may not refer to it either.)

2. USAGEOF GENDER-NEUTRAL LANGUAGEIN AMENDING LEGISLATION:

Gender-neutral language is also used in amending legislation. However, care should be taken when amending a section or group of sections that use the masculine only. For example, avoid having a mixture of “he” and “he or she” in the same section. If amending a section that currently refers to “he”, a gender-neutral technique described below should be used or, if there are only a few references to “he” in the section, the references could be amended consequentially.

3. DIFFERENT TECHNIQUES CAN BE USED:

There are various techniques that can be used to achieve gender-neutral drafting. The draftsperson should exercise judgment and choose the approach most appropriate to the context. For example, say “Chairperson” instead of “Chairman”. Use “the person” instead of “he” or ‘she”.

4. REPEAT NOUN (NEUTRAL):

A gender-neutral noun can be used in place of a pronoun specific to a gender. However, this formulation may become complicated if there are multiple references to the subject/noun in the same provision.

For example:A person commits an offence if the person contravenes sub-section (*1*).

5. AVOID USING PRONOUN/NOUN:

The provision can be recast to avoid repeating the noun. Example: A person who contravenes sub-section (1) commits an offence.

6. USE RELATIVE CLAUSE

The pronoun can be avoided by using a relative clause. **For example**:

Instead of: "*If a receiver is appointed under section …, he must not …*".

Consider: "*A receiver who is appointed under section … must not …*".

Replace possessive pronoun:

Replace a possessive pronoun with "the" to avoid using "his" or even "his or her".

Instead of: "The Commissioner must give a **copy of his report** under this sub-section to the Secretary", **Consider:** "*The Commissioner must give a **copy of the report** under this sub-section to the Secretary."*

7. ELIMINATE PRONOUN ALTOGETHER:

The provision can be rewritten to the same effect without using a pronoun.

Example:

Instead of: *The Director may issue an improvement notice if he is of the opinion …*

Consider*: The Director may issue an improvement notice if of the opinion …*

Instead of*: A license granted by the Chief Executive on his being satisfied …*

Consider: *A license granted by the Chief Executive on being satisfied …*

Instead of: *A person is not incompetent, only by reason of his being an executor …*

Consider: *A person is not incompetent, only by reason of being an executor …*

8. Use of pronouns—"he" or "she"; "his" or "her"

Consider whether the provision applies to artificial persons before using "he" or "she". If the provision applies only to natural persons, "*he" or "she*" and "*his" or "her*" can be used**.**

Redraft in passive voice or swap the order of subject and object

The passive voice formulation is a permissible exception to the general principle that legislation should be drafted in the active voice. It is only appropriate if it is obvious or unimportant who is responsible for the required action or who the actor is.

Instead of: *The person must include his name in the application.*

Consider: *The person's name must be included in the application.*

or

The application must include the person's name.

9. USE VERB INSTEAD OF NOUN:

A verb can be used in place of a noun.

Instead of: *The Authority may not add an address … unless the registered user has given his consent to its inclusion …*

Consider: *The Authority may not add an address … unless the registered user has consented to its inclusion …*

10. DRAFT IN THE SINGULAR:

Take care using this formulation to avoid creating the impression that it only applies if the members collectively resign or are removed from office.

Consider: A member holds office until he resigns or is removed from office.

Instead of: The members hold office until they resign or are removed from office.

11. USE PLURAL PRONOUN:

The use of the singular "they" as a generic singular pronoun has long been deployed in the English language as a convenient alternative to a more elaborate gender-specific pronoun reference. *While its contemporary usage is recognized in modern grammars, it is still gaining acceptance in*

formal writing. A number of jurisdictions use the singular "they" in their legislation. Draftspersons may use it so long as there is no possible ambiguity and its use does not affect……. The singular "they" is a useful way to avoid gender-specific language, but the draftsperson is, of course, free to use another technique if they prefer.

For example: *"Every person of the age of twenty-one years and above may include their name in the application."*

12. GENDER-NEUTRAL JOB TITLES ETC.:

Avoid the generic term "**man**" and generic words and expressions that contain "**man**" or use "**man**" as an adjective or verb. Also, as far as possible, use gender-neutral terms to describe occupations or classes of persons.

Suggestions:

- ambulance man = ambulance officer
- average man = average person, ordinary person, people in general, the public
- chairman= chairperson, presiding officer
- crewman = crew member
- fireman = fire fighter
- foreman = supervisor
- headmaster, headmistress = Head teacher
- layman =layperson, non-professional, non-specialist
- man and wife = husband and wife, wife and husband
- man/men = person, people, individual, human being, human
- mankind/man (when referring to humanity)=humanity, human beings, the human race, human kind
- man-made=of human construction, hand-made
- artificial= manufactured, synthetic, machine-made
- manpower = work force, staff, labor, employees, staff resources, personnel
- per man =per person
- policeman =police officer
- postman = postal worker, postal officer
- salesman/salesgirl =shop-assistant, sales assistant, sales staff, salesperson

- spokesman = spokesperson sportsman athlete
- sportsman = athlete
- steward/stewardess = flight attendant, cabin crew
- to man = to administer, to staff, to run, to operate
- workman= worker
- workmanlike =skillful[165]

SUBORDINATE LEGISLATION

Three terms describe the exercise of delegated legislative authority: delegated legislation, as it involves the delegation of power to create laws; subsidiary legislation, as it is secondary to an Act of Parliament; and subordinate legislation, as it is crafted by a body subordinate to Parliament.[166]

The Legislature delegates discretionary law-making power to subordinate authorities, thus exercising its authority. Through this approach, the Legislature entrusts the detailed provisions required under an Act of Parliament to the Executive.[167]

Statutory rules offer significant public benefits. These rules can meticulously regulate details after a Bill becomes an Act, adapting more effectively to local or specific circumstances than during the Bill's passage through Parliament. They also address the rigidity that could render an Act unworkable and can be modified as circumstances arise. (Attributed to Sir Henry Jenkyns, 1893, Westminster)[168].

2. WHEN DELEGATING THE AUTHORITY TO CREATE SECONDARY LEGISLATION:

- Precisely define the boundaries of delegated powers.
- Care must be taken that the delegated legislation should not be subjected to "ultravires", "excessive delegation", "violation of principles of natural justice", "sub-delegation (unless the parent Act permits)", "retrospectivity (unless the parent Act permits)" and the like.
- Consider avoiding a single provision that grants executive power to create subordinate legislation, like "*Power to make rules"*. Instead, explicitly specify the matters to be prescribed or detailed by the relevant executive body under the relevant sections of the Act. OR
- List all subjects on which the executive can create subordinate legislation under "Power to make regulations" or "Power to make rules". Each sub-section must cross-reference the section prescribing rules or specifying regulations or for that subject matter. This list should be comprehensive and precise.
- Avoid using the phrase "*any other matter which is required to be or may be prescribed under this Act*" as it might result in excessive delegation. It may also lead to misinterpretation that the delegated authority has the power to make rules/regulations which are not specifically empowered by the enabling Act.

3. **CONSIDERATIONS DURING VETTING/SCRUTINISING/DRAFTING OF SECONDARY LEGISLATION:**

- Delegated legislation, both procedurally and substantively, should remain within the scope of the enabling provision.
- Prior to scrutinising delegated legislation, ensure that the primary legislation and all reference documents are correct.

CENTRALISATION OF LEGISLATIVE DRAFTING

Ministry of Law and Justice is the oldest limb of the Government of India dating back to 1833 when the Charter Act 1833 was enacted by the British Parliament. The said Act vested for the first time legislative power in a single authority, namely the Governor General in Council. By virtue of this law and subsequently through the authority vested under him under section 22 of the Indian Councils Act 1861, the Governor General in Council enacted laws for the country from 1834 to 1920. After the commencement of the Government of India Act 1919, the legislative power was exercised by the Indian Legislature constituted thereunder. The Government of India Act 1919 was followed by the Government of India Act 1935. With the passing of the Indian Independence Act 1947, India became a Dominion and the Dominion Legislature made laws from 1947 to 1949 under the provisions of section 100 of the Government of India Act 1935 as adapted by the India (Provisional Constitution) Order 1947. Under the Constitution of India which came into force on the 26th January 1950, the legislative power is vested in Parliament and State legislatures.

Benefits of a centralised system include:

- Systematic and consistent preparation of legislation.
- Improved legality, workability, usability, and adherence to policy.
- Clarified policy formation and drafting processes.
- Availability of expert Legislative Counsel.
- Enhanced skills and competence among draftspersons.
- Confidentiality of policy decisions.
- Independent advice on legislative proposals.[169]

Experienced legislative drafting talent (whether through lack of adequate training or for reasons of absence as a subject in higher education) is generally in short supply. On the other hand, the legal talent for performing other kinds of legal work or litigation is much more readily available.[170]

Owing to the difficulty of maintaining a "statute book" as a single coherent, cohesive and uniform system, it is desirable to concentrate the necessary time incurred on drafting in as few hands as possible. This reduces the administrative burden of all those who are responsible for maintaining that system.[171]

ANNEXURE

Words and phrases:

Traditional form	Plain form
[laws, discussions, etc] in respect of, in relation to, in connection with, with respect to, as to, concerning	about
[payments, etc] in respect of [the year, etc]	[payments, etc] for [the year, etc]
6 o'clock in the afternoon	6 pm
6 o'clock in the morning/forenoon	6 am
absolutely null and void and of no effect	void
accorded	given
adequate number of	enough
adjudged, ordered, and decreed	adjudged
admit of	allow
afford [evidence, etc]	give/supply
aggregate	total/sum
allocate	give/divide
alter, amend	change
among and between	among (if more than two involved); between (if two or more but treated individually)
amounts that in the aggregate amount to	amounts adding up to
any act or thing done, step taken, or decision made	anything done
any act, matter or thing	anything
any other person, another person	anyone else/someone else
applicable	that applies
apprehend/apprehension	arrest
approximately	about
ascertained in accordance with the formula	Worked out/calculated/determined/using the formula
assist	help
at the place where	where
at the time when, at the time that, at the time	when [unless it is necessary to refer later on in the provision to "that time"]
attain	reach
attained the age of 65 years	at least 65/65 or over/at least 65 years old
bona fide	in good faith, genuine
but for this sub-section	apart from this sub-section
by means of	by
by, or in accordance with the provisions of, [*this Act, etc*]	by or under [*this Act, etc*]
cause it to be done	have it done
cease	stop
commence [not the commencement of an Act	begin/start

or provision]	
constitute and appoint	appoint
determine	fix/work out
do and perform	do
does not have any force or effect	has no force/has no effect
does not operate to	does not
during such time as	while
during the course of	during
effectuate, implement	carry out
exceeds	is more than/is over
exclusively	only
expend	spend
expenditure	spending
expiration, termination	end
for the duration of	during
forward	send/give
has full force and effect	has effect
has no power to, is not entitled to	cannot
has power to, is empowered to, is entitled to, has the option of	may
in accordance with	under
in consequence of, as a result of	because of
in excess of/exceeding	more than/over
in like manner as	as/in the same way as
in or in connection with, for or in connection with	in connection with/about
in the event that	if
indicate	show/state
initiate	begin/start
institute proceedings	begin/start/bring proceedings
is constituted by	consists of
is not required to	does not have to
is required to	has to/must
is void and of no effect	has no effect
issue	give
legal practitioner	lawyer [defined if necessary]
like [circumstances, etc]	the same, similar [circumstances, etc]
maintain	keep/continue
medical practitioner	doctor [defined if necessary]
mutatis mutandis	with appropriate changes
necessitate	require
not attained the age of 65 years	under 65/ under 65 years old
not less than, not fewer than	at least
notice published in the Gazette	Gazette notice/notice in the Gazette
notwithstanding	despite/in spite of/irrespective of
notwithstanding the fact that	even if/although
of its own motion	on its own initiative

on behalf of, for and on behalf of	for
otherwise than	except
per annum, per month, etc	a year, a month and the like
prior to	before
procure	get
provide, furnish	give/supply
pursuant to, in pursuance of, by virtue of	under/because of
reduced to writing	put in writing/written down
render	make/give
request, require	ask
reside	live [but "residence" is sometimes useful]
retain	keep
shall be deemed to be	is taken to be/is treated as/is regarded as
submit	send/give
subsequent to	after
subsequent, subsequently	later
sufficient, adequate	enough
terminate	end/finish
the day next/immediately preceding	the day before
the day next/immediately succeeding	the day after
the day preceding	the day before
the provisions of this Act, the provisions of this section	this Act, this section
to and in relation to, to or in relation to	to [in most cases]/in relation to [where very wide meaning needed]
without limiting the generality of the foregoing, ... include	include, but are not limited to/include, in particular
Without prejudice to the provisions contained in sub-section (1)…	Without affecting the provisions of sub-section (1)…

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END NOTES :

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163 The UK Act of Parliament of 1850, known as Lord Brougham's Act, "*An Act for shortening the Language used in Acts of Parliament"* (13 & 14 Victoria) (C.21-23) (10th June 1850) introduced the use of the generic "he" to include "she"—"Be it enacted that in all Acts Words importing the Masculine Gender shall be deemed and taken to include Females … unless the contrary as to Gender … is expressly provided; …".

164 Section 7(1) of the IGCO (provisions for gender and number) provides that "*words and expressions importing the masculine gender include the feminine and neuter genders"*

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